

Theme 3: Negotiated Constitutional “Revolution”



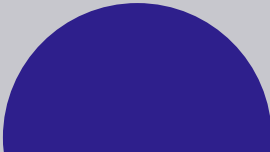


Admin!

**Thanks for those who came to HR week
lecture yesterday 😊**

A1: 16 April

Next tut:

- Opens 9 April
 - Submit 16 April
 - In person 20-24 April
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RECAP!

- We looked at the influence of the liberation movement on the end of Apartheid
- We Looked at CODESA and some of the key tensions which lead to the negotiations failure
- We looked at the MPNF which ultimately led to the **interim constitution**
- We looked at the IC and some of its important aspects
- We looked at the creation and reasons for of the two stage transition
- We looked at the constitutional principles found in Schule Four of IC
- And the rules for drafting the Final Constitution

The Interim Constitution

Origins and Process

- Negotiations began during CODESA
- Finalised by unelected MPNF **BEFORE** the first democratic election
- MPNF adopted interim Constitution late 1993
- Became immediately binding after **27 April 1994** (democratic election)
- It was adopted in terms of the procedures and process in the 1983

Constitution

Rules for Drafting the Final Constitution

The IC set out the rules and process for the drafting of the FC

- Section 68(1): The National Assembly and Senate (NCOP) sitting **jointly** would form the **Constitutional Assembly**
- The Assembly had to adopt the constitutional text **within two years** of the first sitting of the National Assembly
- Required support of **2/3rds** majority of all Constitutional Assembly members
- Section 71(2): The new text (NT) would have no force or effect unless **the Constitutional Court certified** it complied with the **34 Constitutional Principles** held within
- If a draft failed to get 2/3rds support but gained majority support, it would become the constitution if backed by at least 60% of voters **in a referendum** (this option was not used)

Constitutional Principles

- These were ***benchmarks*** that the Final Constitution had to meet.
 - They would be used in the drafting of the FC.
 - The newly established Constitutional Court would then evaluate (and certify) the FC, using the Principles.
 - If the provisions of new Final Constitution did not comply with the Constitutional Principles, the Court could not certify the document and it would need to be sent back to the Constitutional Assembly to be redrafted



Constitutional Principles

Key principles that would shape the nature of the new Constitution included:

- Constitutional democracy based on the **supremacy of the constitution**, protected by an independent judiciary
 - **Universal adult suffrage** and regular elections
 - **Separations of powers / checks and balances** between branches of government
 - A Bill of Rights that is **justiciable**, protecting fundamental rights and civil liberties
 - One sovereign state structured at the national, provincial and local levels (Multi-sphere government)
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Constitutional Principles

Key principles include continued:

- **Proportional representation** and a common voters roll
- Recognition of traditional leadership and customary law
- Protection of the Constitution from amendment except through special processes

Exercise 2: What did the IC actually change

“Under apartheid, Parliament was Supreme. Under the Interim Constitution, the Constitution was to be Supreme”

Task:

In pairs or small groups:

- Look at the fundamental differences between before and after the IC listed on the next slide.
- **Rank** what you would have in the top three most revolutionary changes – be able to justify why with a sentence for each.
- Identify which you think would have been **most frightening** to the NP, and which would be the **most important** for ordinary South Africans

Fundamental differences brought about by IC

- Shift from Parliamentary Sovereignty to Constitutional Supremacy
- Creation of a New Independent Constitutional Court
- Justiciable Bill of Rights
- Two-stage transition model
- Coalition government (GNU)
- Certification mechanism
- Shift to multi-party democracy
- Separation of powers

The Interim Constitution as a “Bridge”

“This Constitution provides *a historic bridge* between the past of a deeply divided society characterised by strife, conflict, untold suffering and injustice, and a future founded on the recognition of human rights, democracy and peaceful co-existence and development opportunities for all South Africans, irrespective of colour, race, class, belief or sex.” – **Post amble to the Constitution of the republic of South Africa Act 200 of 1994**

How did the fundamental changes listed prior move South Africa from a culture of authority to a culture of justification ??

The Final Constitution





A New Dawn!



- Following the first democratic election, in which all persons could vote for the first time, the ANC, held the **majority of the National Assembly**.
- Nelson Mandela, president of the ANC, was made the first democratically elected President of South Africa
- And the Constitutional Assembly had to embark on the mammoth task of drafting a new Constitution, in line with **all the Constitutional Principles**, in two years.
- Opening parliament for the first time. **Nelson Mandela** read “The Child is Not Dead” by Ingrid Jonker, to show where we have come from, and the hope for our new future



"The child is not dead" - Ingrid Jonker Poem

**The child is not dead
not at Langa nor at Nyanga
not at Orlando nor at
Sharpeville
nor at the police post at
Philippi**

Election results = Representation in the Constitutional Assembly

Election Results:

- ANC **63.66%** of the vote / 252 seats **(not quite 2/3rds)**
- NP: 20.39% / 82 seats
- FP: 10.54% / 43 seats
- Freedom Front: 2.17% / 9 seats
- Democratic Party: 1.73% / 7 seats
- PAC: 1.25% / 5 seats
- ACDP: 0.45% / 2 seats



Election results = representation in the Constitutional Assembly

- The election results directly affected **the dynamics** of the constitutional assembly and thus the drafting process
- No one party had enough votes to draft the constitution on their own
- IE the ANC **did not** get the 2/3rds majority needed to pass the final constitution on its own
- The ANC had to **seek consensus** with the other parties in the GNU, particularly the NP which had significant implications for what ended up in the 1996 Constitution



Constitutional Assembly and First Draft of FC

- An enormous **Public Participation Process** was launched – this was to aid in popular acceptance of the final document
 - If the people felt they had a hand in shaping the FC, they would feel a greater connection to it
- First draft of the FC submitted to the Constitutional Court - **10 May 1996**
 - This draft **was not certified** by the CC.
 - The CC felt several provisions did not align with the constitutional Principles (



Tomorrow we look at the First Certification Judgement in detail

- Para 76-78
- Para 106-113
- Para 149-165